

Court No. - 29

Case :- WRIT - C No. - 10676 of 2020

Petitioner :- Adeeva Khanam

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai, Mohd. Aslam

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Pankaj Mithal, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

Heard Sri Bidhan Chandra Rai, learned counsel for the petitioner, learned Standing Counsel for respondents No. 1 and 2 and Sri Chandan Agarwal, learned counsel for respondents No. 3 and 4.

The petitioner has come up in this petition so as to assail the recovery citation dated 14.01.2020 whereunder a sum of Rs. 7,86,983/- as electricity dues are being sought to be recovered from her.

The petitioner alleges that she is ready and willing to pay the undisputed principal amount provided some reasonable time is allowed to her for depositing the same subject to settlement of dispute regarding the balance amount provided her electricity connection which has been disconnected is restored.

The petitioner, for the purposes of getting her electricity restored can take recourse to the provisions of Clause 4.39 of the U.P. Electricity Supply Code, 2005.

In context with the fixation of installment, for the payment of the aforesaid amount, she can approach the Executive Engineer under Clause 6.14 of the U.P. Electricity Supply Code, 2005.

In view of the aforesaid alternative remedies available to the petitioner, we do not deem it necessary to exercise our discretionary jurisdiction.

The writ petition is, accordingly, **dismissed** with liberty to the petitioner to avail the said remedies and it is expected that the Executive Engineer will consider the applications of the petitioner, if any made thereunder, sympathetically keeping in mind the ill health of the petitioner and the prevailing COVID-19 Pandemic.

Order Date :- 6.7.2020

Nirmal_Sinha